

23VECV05702 23VECV05702

County: los-angeles

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Tentative Ruling

Barrett v. Jackson, Case no. 23VECV05702

Hearing date June 30, 2026

Defendant

Jacksun's Motion to Set Aside Default and Default Judgment

Plaintiff

Barrett sues defendants Jacksun, erroneously sued as Jackson, Jermaine L. Jackson, Inc. and Work Records, Inc. for alleged sexual assault. Default was entered on 4/23/26, and default judgment on 5/14/26. Jacksun moves to set aside the default and default judgment, quash service and requests leave to file a proposed demurrer. Plaintiff opposes.

Jacksun

requests judicial notice of 22 documents. Plaintiff does not object to notice of the existence of the documents, but objects to a request for judicial notice of the documents' disputed factual contents or the truth thereof. This is proper. The court GRANTS judicial notice of the documents' existence or absence from the court file pursuant to Evid. Code §452(d) but does not grant notice of the truth or contested nature of their contents.

Plaintiff

offers the declaration of counsel Castagna. Jacksun objects. Objections 1-18
OVERRULED.

Per

Code Civ. Proc. §473(b), a motion to set aside default is timely if filed “within a reasonable time, in no case exceeding 6 months” after the order was taken.

Jacksun

argues the default and default judgment are void pursuant to Code Civ. Proc. §473(d), as plaintiff failed to correctly serve or provide adequate notice. Jacksun asserts he legally changed his name from “Jackson,” the name in the complaint and in the service via publication, to “Jacksun” on 2/20/13. Decl. Jacksun, para. 2. Jacksun declares under penalty of that he did not receive actual notice of the complaint, summons or statement of damages. Id. at paras. 5-8.

Plaintiff

argues Jacksun still regularly conducts business under the name “Jackson” so cannot claim lack of notice. See Decl. Castagna, exhs. 6-8. This is unavailing. The name under which an artist or businessperson conducts business does not control for issues of service of process. Service via publication likewise must strictly comply with statutory requirements, and any defect is grounds to void. In re Marriage of Lippel (1990) 51 Cal.3d 1160, 1166. The failure to use Jacksun’s true legal name is fatal to the default.

Jacksun

asserts he was living in Bahrain during the dates of attempted service. Decl. Jacksun, para. 9. Jacksun asserts at no time was he residing at or receiving mail at his mother’s address, in Encino, the address used for initial service attempts. Id. at para. 9. Jacksun argues plaintiff’s service via publication occurred in a Los Angeles publication, despite plaintiff’s non-service notices stating that Jacksun lived overseas. See 3/20/25 Supp. Decl. Lang, exh. A; 5/22/25 Supp. Decl. Reck, exh. A.

Plaintiff

argues she made all reasonable efforts to locate Jacksun prior to serving via publication in Los Angeles. Plaintiff asserts she attempted service at multiple locations tied to Jacksun, consulted Lexis Nexis Public Records Search and Transunion Locator Services, contacted Jacksun’s siblings and retained a private investigator. See Decl. Castagna, exhs. 5, 10-11. Plaintiff argues this satisfies the requirements of Code Civ. Proc. §415.50. See Watts v. Crawford (1995) 10 Cal.4th 743, 748–749 & fn. 5. This is unavailing;

where plaintiff had notice that Jacksun was alleged to be overseas, and where plaintiff conducted at least some investigations into his overseas locations, choosing to publish in Los Angeles does not constitute reasonable diligence. See Code Civ. Proc. §415.50(b).

Plaintiff

argues news articles have been published regarding the existence and allegations of this case. See Decl. Castagna, paras. 13-17, exhs. 12-16. Plaintiff argues Jacksun was dropped from his talent agency as a result of this case and argues this should have provided Jacksun with actual notice. *Id.* at exh. 16. This is unavailing. Service requirements must be strictly complied with and strictly construed, especially in defaults. *Lippel, supra*. No statute recognizes alleged third-party employment decisions as valid constructive notice.

The

failure to use Jacksun's true legal name is fatal, compounded by plaintiff's decision to publish in Los Angeles, while Jacksun was apparently living overseas. The court recognizes the difficulties in locating defendants living abroad. However, choosing to publish in Los Angeles after receiving notice that Jacksun was likely abroad, and doing so with an incorrect name, leaves no choice but to void the default judgment against all defendants and the default as to Jacksun personally. Defendants Jermaine L. Jackson, Inc. and Work Records, Inc. remain in default.

Jacksun's

request to file a demurrer with motion to strike on his behalf only is GRANTED, to be filed within 5 court days. Jacksun argues service of the summons and complaint should be quashed. DENIED. Jacksun has made an appearance via filing this motion and filed a proposed responsive pleading, not a motion to quash. The court has set aside the default against Jacksun and accepted the proposed responsive pleading. There is no basis to quash service.

Jacksun

requests "access through counsel to all sealed, lodged, conditionally sealed, or non-public default-prove-up materials" filed. Mtn. 2:4-5. DENIED without prejudice.

GRANTED

in part as above; the 5/14/26 default judgment is set aside as void. The

default entered against Jacksun on 4/23/26 is set aside as void. Jacksun is to file the proposed demurrer with motion to strike within 5 court days.